

# STATE OF NEW YORK

1417--A

2025-2026 Regular Sessions

## IN ASSEMBLY

January 9, 2025

Introduced by M. of A. ROSENTHAL -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to prohibiting the use of algorithmic pricing by a landlord for the purpose of determining the amount of rent to charge a residential tenant

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The general business law is amended by adding a new section 344 to read as follows:

§ 344. Use of pricing algorithmic in setting rent amount prohibited.  
1. For the purposes of this section, the following terms shall have the following meanings:

(a) "Pricing algorithm" shall mean any computational process, including a computational process derived from machine learning or other artificial intelligence techniques, that processes data to recommend or set a price or commercial term that is in or affecting interstate or foreign commerce.

(b) "Coordinator" shall mean any operator of a software or data analytics service that performs a coordinating function for any landlord, including a landlord performing a coordinating function for such landlord's own benefit.

(c) "Competitor data":

(i) shall mean nonpublic or public data that is derived from or otherwise provided by another person that competes in the same market as a person, or a related market; and

(ii) does not include information distributed, reported, or otherwise communicated in a way that does not reveal any underlying data from a competitor, such as narrative industry reports, news reports, business commentaries, or generalized industry survey results.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD04298-02-5

1 2. (a) In setting the amount of rent to be charged to a tenant for the  
2 occupancy of a residential premises, including determining any change in  
3 the amount of rent to be charged for the renewed occupancy of a residen-  
4 tial premises, a landlord shall not employ, use, or rely upon, or cause  
5 another person to employ, use, or rely upon, an algorithmic pricing that  
6 uses, incorporates, or was trained with competitor data.

7 (b) A coordinator shall not facilitate an agreement among landlords to  
8 not compete regarding the renting of residential premises.

9 3. (a) A landlord shall not share a tenant's personal data with any  
10 third party without such tenant's written consent.

11 (b) A landlord shall disclose to each tenant:

12 (i) the categories of personal data processed by the landlord and by  
13 any processor who processes personal data on behalf of such landlord;

14 (ii) the sources from which personal data is collected;

15 (iii) the purposes for processing personal data;

16 (iv) the landlord's retention period for each category of personal  
17 data that such landlord processes or which is processed on such land-  
18 lord's behalf, or if that is not possible, the criteria used to deter-  
19 mine such retention period; and

20 (v) the identity of each third party to whom the landlord disclosed,  
21 shared, transferred, or sold personal data, and for each identified  
22 third party:

23 (A) the categories of personal data being shared, disclosed, trans-  
24 ferred, or sold to the third party;

25 (B) the purposes for which personal data is being shared, disclosed,  
26 transferred, or sold to the third party;

27 (C) the third party's retention period for each category of personal  
28 data processed by such third party or processed on such third party's  
29 behalf, or if that is not possible, the criteria used to determine such  
30 retention period; and

31 (D) whether the third party uses the personal data for targeted adver-  
32 tising.

33 4. In addition to any action brought by the attorney general under  
34 this article, a tenant injured by a violation of this section may bring  
35 an action to recover damages. A court may also award attorneys' fees to  
36 a prevailing plaintiff tenant.

37 § 2. This act shall take effect on the ninetieth day after it shall  
38 have become a law and shall apply to any rental agreement that is  
39 executed on or after the effective date of this act.